Bylaws of Fighting Antisemitism in Schools (FAIS)

A Massachusetts Nonprofit Organization

Adopted: [Date to be determined by Board]
Last Amended: [Date]

Article I: Name and Purpose

Section 1.1 Name

The name of this organization shall be **Fighting Antisemitism in Schools**, also known by the acronym **FAIS** (hereinafter "the Organization").

Section 1.2 Purpose

FAIS is organized exclusively for charitable and educational purposes under Section 501(c)(3) of the Internal Revenue Code. The Organization's mission is to:

- Combat antisemitism in K-12 schools through education, advocacy, and support
- Provide resources and training to students, educators, and school administrators
- Foster safe and inclusive school environments free from religious discrimination
- Document and respond to incidents of antisemitism in educational settings
- Build coalitions with other organizations committed to fighting hate and bigotry

Section 1.3 Nonprofit Status

The Organization shall be nonprofit and no part of the net earnings shall inure to the benefit of any member, director, officer, or any private individual. The Organization may accept contributions and grants consistent with its educational and charitable purposes.

Article II: Board of Directors

Section 2.1 Governing Authority

The Board of Directors (the "Board") shall have general supervision and control of the affairs, funds, and property of the Organization, and shall carry out the Organization's mission consistent with Massachusetts nonprofit law.

Section 2.2 Number and Qualifications

The Board shall consist of no fewer than three (3) and no more than fifteen (15) directors. Directors must be at least 18 years of age. The initial Board may include the founders and shall establish the exact number of directors within this range.

Section 2.3 Term of Office

Directors shall serve staggered terms of two (2) years. Directors may serve consecutive terms without limitation, subject to reelection by the Board.

Section 2.4 Election and Appointment

Directors shall be elected by a majority vote of the existing Board at the annual meeting. The Board may fill vacancies at any regular or special meeting by majority vote. A director elected to fill a vacancy shall serve the remainder of the unexpired term.

Section 2.5 Removal

Any director may be removed, with or without cause, by a two-thirds (2/3) vote of the Board at any meeting where a quorum is present,

provided that written notice of the proposed removal has been given to all directors at least ten (10) days prior to the meeting.

Section 2.6 Resignation

Any director may resign at any time by giving written notice to the President or Secretary. Such resignation shall take effect at the time specified, or immediately if no time is specified.

Section 2.7 Compensation

Directors shall serve without compensation but may be reimbursed for reasonable expenses incurred in the performance of their duties, subject to Board approval.

Article III: Meetings of the Board

Section 3.1 Annual Meeting

The Board shall hold an annual meeting each year at a time and place determined by the Board for the purpose of electing officers, reviewing the prior year's activities, and conducting such other business as may arise.

Section 3.2 Regular Meetings

The Board may establish a schedule of regular meetings. Notice of regular meetings shall be provided at least seven (7) days in advance.

Section 3.3 Special Meetings

Special meetings may be called by the President or by any three (3) directors. Notice of special meetings shall be provided at least three (3) days in advance and shall state the purpose of the meeting.

Section 3.4 Notice

Notice of meetings may be given by email, text message, or other electronic communication to the address or number provided by each director. Notice shall include the date, time, location (or virtual meeting link), and agenda.

Section 3.5 Quorum

A majority of the directors then in office shall constitute a quorum for the transaction of business. If a quorum is not present, the meeting may be adjourned to a later date.

Section 3.6 Voting

Each director shall have one vote. Decisions shall be made by majority vote of directors present at a meeting where a quorum exists, except where these bylaws require a supermajority vote. Proxy voting is not permitted.

Section 3.7 Virtual Meetings

Meetings may be held in person, by telephone conference, or by video conference, or by any combination thereof, provided all participants can hear and communicate with each other simultaneously.

Section 3.8 Action Without Meeting

Any action required or permitted to be taken at a Board meeting may be taken without a meeting if all directors consent in writing or by electronic transmission. Such consent shall have the same effect as a unanimous vote.

Article IV: Officers

Section 4.1 Officers

The officers of the Organization shall be a President, Vice President, Secretary, and Treasurer. The Board may create additional officer positions as needed.

Section 4.2 Election and Term

Officers shall be elected by the Board at the annual meeting and shall serve for one (1) year or until their successors are elected. Officers may serve consecutive terms without limitation.

Section 4.3 President

The President shall:

- Serve as the chief executive officer of the Organization
- Preside at all meetings of the Board
- Oversee the day-to-day operations and strategic direction
- Serve as primary spokesperson for the Organization
- Execute contracts and documents on behalf of the Organization as authorized by the Board

Section 4.4 Vice President

The Vice President shall:

- Perform the duties of the President in the President's absence or inability to serve
- Assist the President with duties as assigned
- Succeed to the Presidency if that office becomes vacant between elections

Section 4.5 Secretary

The Secretary shall:

- Keep accurate minutes of all Board meetings
- Maintain corporate records and official documents
- Provide notice of meetings as required by these bylaws
- Maintain the register of directors and officers
- Ensure proper filing of required documents with state and federal authorities

Section 4.6 Treasurer

The Treasurer shall:

- Oversee all financial accounts, funds, and assets of the Organization
- Present financial reports at Board meetings
- Ensure accurate bookkeeping and financial record-keeping
- Prepare or oversee preparation of annual tax filings (Form 990)
- Work with any outside accountants or financial advisors

- Ensure appropriate financial controls and oversight

Section 4.7 Removal of Officers

Any officer may be removed, with or without cause, by a two-thirds (2/3) vote of the Board at any meeting where a quorum is present.

Article V: Advisory Board and Committees

Section 5.1 Youth Advisory Board

The Organization may establish a Youth Advisory Board consisting of students who provide input, feedback, and assistance with programming. Youth advisors shall not have voting authority or fiduciary duties but shall advise the Board of Directors on matters relevant to the student experience.

Section 5.2 Standing and Ad Hoc Committees

The Board may establish standing or ad hoc committees as needed to carry out the work of the Organization. Committee chairs shall be appointed by the President with Board approval. Committees may include non-Board members with relevant expertise.

Section 5.3 Committee Authority

No committee shall have authority to bind the Organization financially or legally without express Board approval. All committee actions are advisory unless the Board delegates specific authority in writing.

Article VI: Finances

Section 6.1 Fiscal Year

The fiscal year of the Organization shall be determined by the Board and may be changed by Board resolution.

Section 6.2 Budget

The Treasurer, in consultation with the President, shall prepare an annual budget for approval by the Board.

Section 6.3 Financial Controls

The Board shall establish financial policies and procedures to ensure proper handling of funds, including:

- Dual signature requirements or approval processes for expenditures above a threshold set by the Board
- Segregation of duties for financial transactions
- Regular financial reporting and review
- Annual review of financial statements

Section 6.4 Loans Prohibited

No loans shall be made by the Organization to any director, officer, or employee.

Section 6.5 Contracts and Agreements

Contracts, agreements, and other instruments may be executed on behalf of the Organization by the President or other officers as authorized by the Board.

Article VII: Conflicts of Interest

Section 7.1 Policy

The Organization shall maintain a written conflict of interest policy. Directors and officers must disclose any direct or indirect financial or personal interest in any matter before the Board and shall abstain from voting on such matters.

Section 7.2 Disclosure

Each director and officer shall annually complete a conflict of interest disclosure statement identifying any relationships, positions, or circumstances that may present a conflict.

Section 7.3 Prohibited Transactions

No director, officer, or employee shall receive compensation for serving on the Board. The Organization shall not engage in transactions that benefit directors, officers, or their family members unless:

- The transaction is fair and reasonable to the Organization
- The conflict is fully disclosed
- The interested party does not participate in the decision
- The transaction is approved by a disinterested majority of the Board

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Article VIII: Indemnification

Section 8.1 Indemnification

The Organization shall indemnify its directors, officers, employees, and volunteers to the fullest extent permitted by Massachusetts law against all expenses, liabilities, and losses (including attorneys' fees) reasonably incurred in connection with any proceeding arising from their service to the Organization, provided they acted in good faith and in the best interests of the Organization.

Section 8.2 Insurance

The Organization may purchase and maintain insurance on behalf of directors, officers, and volunteers against liabilities arising from their service.

Article IX: Amendments

Section 9.1 Amendment Process

These bylaws may be amended, repealed, or restated by a two-thirds (2/3) vote of the Board at any meeting where a quorum is present, provided that:

- Written notice of the proposed amendment has been given to all directors at least ten (10) days prior to the meeting

- The notice includes the text of the proposed amendment

Section 9.2 Conflicts with Law

If any provision of these bylaws conflicts with applicable law, the law shall control, and the conflicting provision shall be deemed modified to comply with law.

Article X: Dissolution

Section 10.1 Dissolution

The Organization may be dissolved by a two-thirds (2/3) vote of the Board, subject to the requirements of Massachusetts law governing nonprofit dissolution.

Section 10.2 Distribution of Assets

Upon dissolution, after payment of all debts and obligations, any remaining assets shall be distributed to one or more organizations that:

- Are organized and operated exclusively for charitable and educational purposes
- Qualify as tax-exempt under Section 501(c)(3) of the Internal Revenue Code
- Have purposes similar to those of FAIS, including combating antisemitism, promoting education, or advancing civil rights

Distribution shall be determined by the Board in accordance with Massachusetts nonprofit law and shall not inure to the benefit of any private individual.

Article XI: Nondiscrimination

Section 11.1 Policy

FAIS does not and shall not discriminate on the basis of race, color, religion (except as related to the Organization's religious mission to combat antisemitism), national origin, ancestry, sex, sexual

orientation, gender identity, age, disability, veteran status, genetic information, or any other characteristic protected by applicable law in its programs, activities, employment, or governance.

Section 11.2 Equal Opportunity

The Organization is committed to providing equal opportunity in all aspects of its operations and shall maintain policies consistent with applicable civil rights laws.

Certification

These bylaws were adopted by the Board of Directors of Fighting Antisemitism in Schools on _____.

_____
Secretary

_____
Date